

		delegation clause. The court therefore finds the Arbitration Agreement, including the delegation clause, is valid and enforceable. (See <i>Rent-A-Center, W., Inc.</i>, supra, 561 U.S. at p. 72 [“unless (the opposing party) challenged the delegation provision specifically, we must treat it as valid under § 2 (of the FAA), and must enforce it under §§ 3 and 4, leaving any challenge to the validity of the Agreement as a whole for the arbitrator”].) The motion is GRANTED. The Court STAYS this action pending resolution of the parties’ arbitration. (Code Civ. Proc., § 1281.4; 9 U.S.C. § 3.) The Court sets an OSC re: ADR for 12/4/2026 at 9:00 a.m., in Department C32.
6.	ONE LLP VS. MOSES 2019-01086815	MOTION FOR ORDER TO STAY PROCEEDINGS Defendant Jeff Moses’s Motion to Stay Enforcement Pending Appeal is DENIED. There is no proof of service filed showing the motion was served on Plaintiff. (Cal. Rules of Ct., rule 3.1300(c) [“Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.”].) On 4/21/26, Defendant filed a document entitled “Proof of Service” under ROA 362 which is an email reflecting Court eFiling of a “Motion – Other” and “Declaration – Other.” However, this is not a proof of service because it does not adequately identify the motion or state by what means other parties were served with the documents. Defendant asserts he is a 60+ year old man with no income who can barely afford basic living expenses. However, Defendant does not submit admissible evidence demonstrating his inability to pay such as a sworn declaration with financial records demonstrating inability to pay. Moreover, Defendant provides no authority demonstrating the court can properly issue a stay in this instance. Money judgments may be stayed pending appeal only upon posting security, usually in the form of a bond or undertaking. (Code Civ. Proc., § 917.1(a)(1) and <i>Dowling v. Zimmerman</i> (2001) 85 Cal.App.4th 1400, 1429.) There is no indication Defendant posted a bond or undertaking for his appeal. Based on the foregoing, the motion is DENIED.

7.	LAGUNA CREST ENTERPRISE, INC VS. SCINTO 2021-01211808	PETITION TO CONFIRM ARBITRATION AWARD Defendant/Cross-complainant Chapwood, L.P.’s (Chapwood) Petition to Confirm Arbitration Award and Request Entry of Judgment is GRANTED. Chapwood moves for an order confirming the arbitration award and entering judgment. <u>Chapwood’s Objections</u> Chapwood’s objections to the Declaration of Josef Cowan are OVERRULED. Chapwood’s objections to the Declaration of Michael J. Callon are OVERRULED. <u>Coast Concrete and Masonry, Inc.’s (CCM) Objections</u> CCM’s objections to the Reply Declaration of Daniel Scinto are SUSTAINED as to objections number 1 and 2 and OVERRULED as to the remaining objections. CCM’s objections to the Reply Declaration of Jim Abeltin are SUSTAINED as to objections number 1, 2, 11-16 (erroneously numbered 7-12) and OVERRULED as to the remaining objections. <u>Laguna Crest Enterprise, Inc.’s (LCE) Objections</u> LCE’s objections to the Reply Declaration of Daniel Scinto are SUSTAINED as to the portions located at 1:14-19, 2:1-3, and Exhibit 3, and OVERRULED as to the remaining objections. LCE’s objections to the Reply Declaration of Jim Abeltin are SUSTAINED as to the portions located at 1:7-3:1, 3:3-5, 3:14-5:28, 6:1-10, 6:14-15, 7:1-25, and Exhibits 2, 3, 9 and OVERRULED as to the remaining objections. LCE’s objections to the Reply Declaration of Jacqueline Fernandes are SUSTAINED as to the portions located at 1:24-28, 2:1-21, 2:26-3:13, and Exhibits 2 through 6 and OVERRULED as to the remaining objections. <u>Legal Standard</u> “Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award.” (Code Civ. Proc., § 1285.) A petition to confirm an arbitration award must “(a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement. (b) Set forth the names of the arbitrators. (c) Set forth or have attached a copy of the award and the written opinion of
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